

## CCRB INVESTIGATIVE RECOMMENDATION

|                                                   |                                     |                           |                                                       |                                    |                                            |
|---------------------------------------------------|-------------------------------------|---------------------------|-------------------------------------------------------|------------------------------------|--------------------------------------------|
| Investigator:<br>Samuel Edison                    | Team:<br>Squad #06                  | CCRB Case #:<br>202303078 | <input checked="" type="checkbox"/> Force             | <input type="checkbox"/> Discourt. | <input type="checkbox"/> U.S.              |
|                                                   |                                     |                           | <input checked="" type="checkbox"/> Abuse             | <input type="checkbox"/> O.L.      | <input checked="" type="checkbox"/> Injury |
| Incident Date(s)<br>Thursday, 03/30/2023 10:50 PM | Location of Incident:<br>§ 87(2)(b) | 18 Mo. SOL<br>9/30/2024   | Precinct:<br>75                                       |                                    |                                            |
| Date/Time CV Reported<br>Fri, 03/31/2023 11:26 PM | CV Reported At:<br>IAB              | How CV Reported:<br>Phone | Date/Time Received at CCRB<br>Tue, 04/11/2023 3:08 PM |                                    |                                            |

| Complainant/Victim | Type       | Home Address |
|--------------------|------------|--------------|
| § 87(2)(b)         | § 87(2)(b) | § 87(2)(b)   |

| Subject Officer(s)    | Shield | TaxID  | Command |
|-----------------------|--------|--------|---------|
| 1. PO Anthony Orlando | 09744  | 964687 | 081 PCT |
| 2. PO William Woodley | 08580  | 967726 | 077 PCT |
| 3. LT Gabriel Cuevas  | 00000  | 945633 | 083 PCT |

| Officer(s)             | Allegation                                                                               | Investigator Recommendation |
|------------------------|------------------------------------------------------------------------------------------|-----------------------------|
| A . PO Anthony Orlando | Abuse: Police Officer Anthony Orlando stopped § 87(2)(b)                                 | A . Substantiated           |
| B . PO William Woodley | Abuse: Police Officer William Woodley stopped § 87(2)(b)                                 | B . Substantiated           |
| C . PO Anthony Orlando | Abuse: Police Officer Anthony Orlando frisked § 87(2)(b)                                 | C . Substantiated           |
| D . PO William Woodley | Abuse: Police Officer William Woodley frisked § 87(2)(b)                                 | D . Substantiated           |
| E . LT Gabriel Cuevas  | Force: Lieutenant Gabriel Cuevas used physical force against § 87(2)(b)                  | E . Within NYPD Guidelines  |
| F . PO Anthony Orlando | Abuse: Police Officer Anthony Orlando failed to provide § 87(2)(b) with a business card. | F . Within NYPD Guidelines  |
| G . PO William Woodley | Abuse: Police Officer William Woodley failed to provide § 87(2)(b) with a business card. | G . Within NYPD Guidelines  |
| H . LT Gabriel Cuevas  | Abuse: Lieutenant Gabriel Cuevas failed to provide § 87(2)(b) with a business card.      | H . Within NYPD Guidelines  |
| I . PO Anthony Orlando | Abuse: Police Officer Anthony Orlando improperly used his body-worn camera.              | I . Substantiated           |
| J . PO William Woodley | Abuse: Police Officer William Woodley improperly used his body-worn camera.              | J . Substantiated           |
| § 87(4-b), § 87(2)(g)  | § 87(2)(b)                                                                               | § 87(2)(b)                  |
| § 87(2)(b)             | § 87(2)(b)                                                                               | § 87(2)(b)                  |
| § 87(2)(b)             | § 87(2)(b)                                                                               | § 87(2)(b)                  |

### Case Summary

On March 31, 2023, § 87(2)(b) filed this complaint with IAB over the phone. On April 11, 2023, it was received at the CCRB via IAB Log #2023-10315.

On March 30, 2023, at approximately 10:30 p.m., PO Anthony Orlando of the 81<sup>st</sup> Precinct, PO William Woodley of the 77<sup>th</sup> Precinct, and Lt. Gabriel Cuevas of the 83<sup>rd</sup> Precinct were assigned to the Community Response Team for Patrol Borough Brooklyn North. During their patrol of the 75<sup>th</sup> Precinct, PO Orlando and PO Woodley stopped and frisked § 87(2)(b) as he was walking past § 87(2)(b) in Brooklyn (**Allegations A, B, C, and D: Abuse of Authority, Substantiated**).

After the stop was concluded, § 87(2)(b) went into the street and stood in front of the officers' vehicle to prevent them from driving away. Lt. Cuevas approached § 87(2)(b) and shoved him backwards into a parked vehicle and then onto the sidewalk multiple times (**Allegation E: Force, Within NYPD Guidelines**). § 87(2)(b) requested business cards from all three officers, but none of them provided one to him and instead verbally provided their names and shield numbers (**Allegations F, G, and H: Abuse of Authority, Within NYPD Guidelines**). PO Orlando and PO Woodley failed to activate their BWCs during the stop portion of the incident (**Allegations I and J: Abuse of Authority, Substantiated**). § 87(4-b), § 87(2)(g)

§ 87(2)(b) was not arrested or issued any summonses.

BWC was obtained and is located in IAs 72-74 (BR 01-03).

### Findings and Recommendations

**Allegation (A) Abuse of Authority: Police Officer Anthony Orlando stopped § 87(2)(b)**

**Allegation (B) Abuse of Authority: Police Officer William Woodley stopped § 87(2)(b)**

**Allegation (C) Abuse of Authority: Police Officer Anthony Orlando frisked § 87(2)(b)**

**Allegation (D) Abuse of Authority: Police Officer William Woodley frisked § 87(2)(b)**

PO Woodley's BWC (BR 01), beginning at the 0:15 second mark, showed him exit his vehicle and begin walking behind § 87(2)(b) who was walking on the left-hand sidewalk of the street. There is no audio, but PO Woodley continued walking behind § 87(2)(b) as the vehicle he exited from drove ahead of § 87(2)(b). At the 0:32 second mark, § 87(2)(b) turned around and looked behind him at PO Woodley, but § 87(2)(b) continued walking down the street. At the 0:35 second mark, PO Orlando stepped onto the sidewalk in front of § 87(2)(b) from the street and grabbed him by the arms of his jacket. PO Orlando pushed him up against the fence that went along the outside edge of the sidewalk and frisked the outside of his jacket pockets.

PO Orlando's BWC (BR 02), beginning at the 0:30 second mark, showed him exit his vehicle and walk behind it and onto the sidewalk in front of § 87(2)(b). PO Orlando pushed § 87(2)(b) backwards against the fence at the far edge of the sidewalk, but the camera was covered by his arm. At the 0:40 second mark, § 87(2)(b) turned to face PO Orlando and stood with his back to PO Woodley. PO Orlando held one of § 87(2)(b)'s arms, and PO Woodley frisked the outside of his jacket pockets.

§ 87(2)(b) testified (BR 04) that at approximately 10:30 p.m., he was talking on the phone as he walked out of his apartment building at § 87(2)(b) in Brooklyn. § 87(2)(b) was

wearing a gray sweatsuit and a light jacket that had two pockets on the sides. As he was walking down § 87(2)(b) he heard someone from behind him yell “yo,” repeatedly in his direction. § 87(2)(b) ignored the voice and continued walking. A few seconds later, an unmarked police vehicle drove past § 87(2)(b) and pulled up in front of him on the street parallel to the sidewalk. PO Orlando exited the vehicle, approached § 87(2)(b) and pushed him on the side of his chest into the gate at the far edge of the sidewalk. At that point, PO Woodley, who was the person shouting from behind § 87(2)(b) approached the gate, and both officers began frisking the outside of his jacket pockets. After approximately 15 seconds, the officers stopped frisking him and started to walk away. § 87(2)(b) asked why they stopped him like that, but neither of the officers responded and continued walking back to the unmarked vehicle parked on the street.

PO Woodley testified (BR 05) that on March 30, 2023, he was in the backseat of an unmarked vehicle patrolling the 75<sup>th</sup> Precinct with Lt. Cuevas and PO Orlando. As they were driving down § 87(2)(b) PO Woodley observed a male individual, § 87(2)(b) walking down the sidewalk approximately 15 feet away. As their vehicle moved closer, PO Woodley observed § 87(2)(b) clenching his arm holding something inside his left jacket pocket. PO Woodley tried to get a better look at the jacket pocket by calling out to § 87(2)(b) so that he would turn to face the vehicle. § 87(2)(b) partially turned his body towards the vehicle, and PO Woodley observed an L-shaped bulge in his left jacket pocket that he believed was indicative of a firearm. PO Woodley told Lt. Cuevas and PO Orlando that he thought he saw a bulge in one of § 87(2)(b)'s jacket pockets. At that point, PO Woodley and PO Orlando decided to stop and frisk § 87(2)(b) for a potential weapon. PO Woodley exited the vehicle and approached § 87(2)(b) from behind while Lt. Cuevas and PO Orlando drove up ahead of § 87(2)(b) on the street parallel to the sidewalk. Before PO Woodley reached § 87(2)(b) PO Orlando exited the vehicle that had stopped further ahead and pushed § 87(2)(b) against a fence along the sidewalk. A few seconds later, PO Woodley reached where § 87(2)(b) and PO Orlando were standing along the fence, but he did not hear what PO Orlando said before he arrived. PO Woodley and PO Orlando spoke to § 87(2)(b) for a few seconds, but PO Woodley did not remember what they said. At that point, PO Orlando released § 87(2)(b) and concluded the stop. PO Woodley did not frisk § 87(2)(b) or inquire about the bulge because PO Orlando was the one who ended up initiating the stop, and he assumed that PO Orlando had confirmed there was no weapon because he decided to let him go. PO Woodley did not observe PO Orlando frisk § 87(2)(b) and he did not observe anything further about the bulge when he was right next to § 87(2)(b).

§ 87(2)(g). PO Orlando observed the L-shaped bulge in § 87(2)(b)'s left jacket pocket after PO Woodley drew attention to it, but he did not remember where § 87(2)(b) was on the street or how far away from their vehicle he was. PO Orlando remained in the front passenger seat of the vehicle with Lt. Cuevas while PO Woodley approached § 87(2)(b) from behind on foot. After observing § 87(2)(b) ignore PO Woodley and continue to walk away, PO Orlando exited the vehicle and approached § 87(2)(b) on the sidewalk. After grabbing § 87(2)(b) and pushing him against the gate, PO Orlando frisked the outside of his left jacket pocket and confirmed that the object was not a firearm or other weapon. The object seemed to be a portable charger, and it was shaped like a block rather than an L-shape. Once he confirmed that the object was not a weapon, PO Orlando released § 87(2)(b) and concluded the stop.

Lt. Cuevas testified (BR 07) that he was driving the unmarked vehicle and did not observe § 87(2)(b) until the stop was concluded. He heard PO Woodley mention that there was a male individual with a bulge on the sidewalk, but he did not personally observe it because he was focused on the road while driving. Lt. Cuevas was aware that PO Woodley and PO Orlando exited



the 1:38 minute mark, Lt. Cuevas yelled again for the officers to move § 87(2)(b) out of the street. At the 1:50 minute mark, Lt. Cuevas told § 87(2)(b) to come over to the driver's side window to speak to him, but § 87(2)(b) did not move and yelled that the officers had no reason to stop him. At the 1:55 minute mark, § 87(2)(b) exited the vehicle and approached § 87(2)(b). Lt. Cuevas grabbed § 87(2)(b) by the jacket and pushed him backwards against a parked vehicle, and he repeated that he told § 87(2)(b) to move away from their vehicle. At the 2:05 minute mark, Lt. Cuevas pulled § 87(2)(b) away from the parked vehicle and pushed him backwards onto the sidewalk. Lt. Cuevas released the hold on his jacket, and § 87(2)(b) began walking back into the middle of the street. Lt. Cuevas placed his hands back on § 87(2)(b)'s chest and pushed him backwards further onto the sidewalk. At the 2:40 minute mark, § 87(2)(b) walked back onto the street in front of the vehicle. At the 3:00 minute mark, § 87(2)(b) asked the officers for their business cards, and Lt. Cuevas asked PO Orlando and PO Woodley if they had business cards. § 87(2)(b) looked at Lt. Cuevas' badge, and Lt. Cuevas provided his name verbally. At the 3:10 minute mark, Lt. Cuevas repeated that § 87(2)(b) needed to get out of the middle of the street, but § 87(2)(b) shouted over him and did not move. At the 3:15 minute mark, Lt. Cuevas grabbed § 87(2)(b) by the jacket again and pushed him backwards onto the sidewalk. At the 3:50 minute mark, § 87(2)(b) went back into the street and said that he still did not receive their business cards, and Lt. Cuevas walked over to him from his vehicle and replied that they were trying to provide the information to him because they did not have any business cards with them.

PO Orlando's BWC (BR 02), beginning at the 1:05 minute mark, showed him approaching § 87(2)(b) by the front of their vehicle and told him that he needed to move out of the middle of the street. At the 4:25 minute mark, § 87(2)(b) stuck his hand out and asked for their business cards. Lt. Cuevas began to verbally provide his name, but § 87(2)(b) interrupted him and said, "that's it." PO Orlando told § 87(2)(b) that they ran out of their business cards but were trying to verbally provide their names to him. § 87(2)(b) replied that he wanted their business cards so that he could file a report about the incident with them. At the 4:35 minute mark, Lt. Cuevas provided his name verbally, and PO Orlando and PO Woodley both verbally provided their names and shield numbers. At the 4:45 minute mark, Lt. Cuevas asked if § 87(2)(b) got all the information, and § 87(2)(b) replied that he did not and asked them to write it down for him. Lt. Cuevas replied that he was not going to write it down, but that § 87(2)(b) could record it on his phone. § 87(2)(b) said that he was going to write it down on the on his phone, and the officers provided their names and shield numbers to him again one by one.

§ 87(2)(b) testified (BR 04) that as PO Orlando and PO Woodley were walking back to their vehicle after they stopped and frisked him, § 87(2)(b) asked for their business cards. The officers replied that they did not have any on them, and § 87(2)(b) asked for their shield numbers instead. They did not respond and continued walking back to their vehicle. At that point, § 87(2)(b) walked into the middle of the street and stood in front of their vehicle to prevent them from leaving. All three officers were inside the vehicle at that point, and § 87(2)(b) continued asking for their shield numbers. Eventually, Lt. Cuevas exited the vehicle for the first time and walked over § 87(2)(b). Lt. Cuevas immediately punched him in the chest, grabbed him, and shoved him backwards into a parked vehicle. Lt. Cuevas released his hold on him, and § 87(2)(b) again asked for their information. At that point PO Orlando and PO Woodley came over to them, and all three officers provided their names and shield numbers to him. § 87(2)(b) wrote them down on his phone, and the officers went back into their vehicle and drove away.

Lt. Cuevas testified (BR 07) that the first time he saw § 87(2)(b) was when he was standing in front of the officers' vehicle in the middle of the street. § 87(2)(b) was shouting about wanting the officers' information, and Lt. Cuevas told PO Orlando and PO Woodley to provide him with

their information but to also make sure he moved out of the middle of the street. § 87(2)(b) s position on the street was a danger to the officers, oncoming traffic, and himself, because their vehicle was stopped on the wrong side of the road and any incoming traffic would be coming right towards them. Lt. Cuevas did not hear what PO Orlando said to § 87(2)(b) but he did not move onto the sidewalk or out of the street. Lt. Cuevas called out for § 87(2)(b) to come and speak to him by the driver's side window so that he would be out of the middle of the street, but § 87(2)(b) continued his refusal to move. At that point, Lt. Cuevas exited the vehicle and escorted § 87(2)(b) onto the sidewalk where he did not pose a danger to himself or other vehicles on the road. Specifically, Lt. Cuevas grabbed § 87(2)(b) by the jacket and pushed him in the direction of the sidewalk. Lt. Cuevas tried to speak with § 87(2)(b) but he continued shouting over him and trying to walk back into the middle of the street. Lt. Cuevas did not remember if § 87(2)(b) specifically requested business cards or just their names and shield numbers, but he would not allow them to verbally provide without him interrupting them. Lt. Cuevas did not have any business cards on him at the time because he had recently run out and was waiting to receive a refill order. The officers were eventually able to verbally provide their names and shield number to § 87(2)(b) who wrote it down on his phone, and they got back in their vehicle and drove away.

§ 87(2)(g)  
§ 87(2)(b). PO Woodley did not remember if § 87(2)(b) specifically requested his business card, but he would have provided his name and shield number verbally either way because he did not have any on him at the time of the incident.

§ 87(2)(g)  
§ 87(2)(b). PO Orlando did not remember exactly when during the incident § 87(2)(b) requested their pedigree information, but he verbally provided his name and shield number because he did not have any business cards with him at the time of the incident.

An officer may use reasonable force when attempting to gain compliance, control, or custody of an uncooperative subject, Patrol Guide 221-02 (BR 12).

It is undisputed that Lt. Cuevas pushed § 87(2)(b) backwards into a parked vehicle followed by pushing him onto the sidewalk. Although § 87(2)(b) testified that Lt. Cuevas punched him in the chest as well, BWC shows that at no point did Lt. Cuevas punch § 87(2)(b) in the chest or anywhere else. Lt. Cuevas testified that he grabbed and pushed § 87(2)(b) because he was creating a dangerous situation by standing in the middle of the street, and he had refused numerous orders to move out onto the sidewalk. § 87(2)(g)

§ 87(2)(g)  
§ 87(2)(b) It is therefore recommended that **Allegation E** be closed as **Within NYPD Guidelines**.

An officer is required to offer a business card to members of the public upon conclusion of law enforcement activities such as a stop where a reasonable person would not feel free to end the encounter. Additionally, an officer is required to provide a business card, when appropriate, at the request of a member of the public or provide such information verbally and allow sufficient time for the information to be recorded when there is not an adequate number of business cards available at the time of the law enforcement activity, Administrative Guide 304-11 (BR 13).

It is undisputed that Lt. Cuevas, PO Orlando, and PO Woodley did not provide a business card to § 87(2)(b) but that they verbally provided their names and shield numbers to him and allowed

him to write it down in his phone. Although none of the officers could recall if § 87(2)(b) specifically requested a business card from them, BWC confirms § 87(2)(b)'s testimony that he repeatedly asked for their business cards throughout the interaction. Additionally, all three officers testified that they could not have provided a business card to § 87(2)(b) because they did not have any on them at the time of the incident. As per the Administrative Guide, in a situation where the officers do not have any business cards available upon request from a member of the public, they would be required to verbally provide their names and shield numbers as well as provide sufficient time for the information to be recorded. § 87(2)(g)

It is therefore recommended that **Allegations F, G, and H** be closed as **Within NYPD Guidelines**.

**Allegation (I) Abuse of Authority: Police Officer Anthony Orlando improperly used his body-worn camera.**

**Allegation (J) Abuse of Authority: Police Officer William Woodley improperly used his body-worn camera.**

The first minute of both PO Orlando and PO Woodley's BWCs (BR 01-02) capture the stop and frisk of § 87(2)(b) but there is no audio to accompany the footage. The audio for their BWCs began after the stop was completed and they walked away back to their vehicle, which is when § 87(2)(b) walked into the middle of the street and stood in front of their vehicle.

§ 87(2)(b) did not make any allegations of the officers' failure to activate their BWC during the incident.

PO Woodley testified (BR 05) that he activated his BWC prior to initiating the stop against § 87(2)(b) and he did not know why there was no audio for the first minute of the footage.

PO Orlando testified (BR 06) that he did not activate his BWC until after the stop was completed and he returned to their vehicle. PO Orlando did not activate his BWC prior to stopping § 87(2)(b) because he was focused on watching § 87(2)(b) in case PO Woodley needed any assistance, and his first instinct as a police officer is not to activate his BWC when he is concerned that there may be a firearm in play.

Officers are required to activate their BWC prior to engaging in any police action including self-initiated investigative stops or other enforcement actions, Patrol Guide Procedure 212-123 (BR 14).

It is undisputed that the stop and frisk of § 87(2)(b) was a police action that required the officers to activate their BWC for prior to engaging. PO Orlando acknowledged that he did not activate his BWC until after the stop was concluded, but PO Woodley testified that he activated it prior to initiating the stop. § 87(2)(g)

it is recommended that **Allegations I and J** be closed as **Substantiated**.

§ 87(4-b), § 87(2)(g)

### **Civilian and Officer CCRB Histories**

- This is the first CCRB complaint to which § 87(2)(b) has been a party (BR 15).
- PO Orlando has been a member of service for six years and has been a subject in five CCRB complaints and 18 allegations, one of which was substantiated (BR 16):
  - 202104865 involved a substantiated allegation of a Vehicle Search against PO Orlando. The Board recommended Command Discipline A, and the NYPD imposed no penalty.
- PO Woodley has been a member of service for four years and this is the first CCRB complaint to which he has been a subject (BR 17).
- Lt. Cuevas has been a member of service for 15 years and has been a subject in 23 CCRB complaints and 86 allegations, 18 of which have been substantiated (BR 18):
  - 201610447 involved substantiated allegations of a stop, frisk, and refusal to provide name and shield number against Lt. Cuevas. The Board recommended Command Discipline B and the NYPD imposed Command Discipline A.
  - 201804454 involved substantiated allegations of a frisk and search of person against Lt. Cuevas. The Board recommended Command Discipline B, and the NYPD imposed Command Discipline A.
  - 201909824 involved substantiated allegations of frisks and search of persons against Lt. Cuevas. The Board recommended Command Discipline B, and the NYPD imposed Command Discipline B with a loss of five vacations days for each allegation.
  - 202002825 involved substantiated allegations of a stop, frisk, and refusal to obtain medical treatment. The Board recommended charges, and the NYPD closed the case without serving charges.
  - 202100913 involved a substantiated allegation for failure to provide RTKA card against Lt. Cuevas. The Board recommended Command Discipline A, and the NYPD did not impose any disciplinary action.
  - 202103678 involved substantiated allegations of a frisk, discourteous word, and failure to provide RTKA card against Lt. Cuevas. The Board recommended charges, and the NYPD has not yet imposed discipline.
  - 202205361 involved substantiated allegations of failure to provide RTKA card and unlawful arrest against Lt. Cuevas. The Board recommended charges, and the NYPD has not yet imposed discipline.

### **Mediation, Civil, and Criminal Histories**

- § 87(2)(b) declined to mediate this complaint.
- As of May 15, 2023, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regard to this incident (BR 19).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

criminal convictions in New York City (BR 20)

§ 87(2)(g)

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Squad No.: 6

|               |                      |                            |                   |
|---------------|----------------------|----------------------------|-------------------|
| Investigator: | <u>Samuel Edison</u> | <u>Investigator Edison</u> | <u>10/27/2023</u> |
|               | Signature            | Print Title & Name         | Date              |

|               |                     |                        |                   |
|---------------|---------------------|------------------------|-------------------|
| Squad Leader: | <u>Jessica Peña</u> | <u>IM Jessica Peña</u> | <u>10/27/2023</u> |
|               | Signature           | Print Title & Name     | Date              |

|           |           |                    |         |
|-----------|-----------|--------------------|---------|
| Reviewer: | <u></u>   | <u></u>            | <u></u> |
|           | Signature | Print Title & Name | Date    |